

Complaint Report (CCRB)

CCRB Case No :	201604699	C/V Report Date :	Tue, 05/31/2016 08:00 PM
Complaint Type :	CCRB	Investigator :	William MacLure
Complaint Made At :	CCRB	Ref. No	1271077057
Received Date (CCRB) :	Tue, 05/31/2016 08:00 PM	Mode :	Call Processing System
Incident Date(s) :	Sat, 05/21/2016 2:45 PM, Sun, 05/22/2016		
Place of Occurrence:	██████████	Precinct:	75
Location :	Apartment/house	Boro:	Brooklyn
Reason for Initial Contact :	PD suspected C/V of violation/crime - bldg		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	██████████	Type:	Comp/Victim
Address:	██		
Contacts:	Phone(Home):	Phone(Mobile):	██████████
	Phone(Work):	Phone(Other):	
	Email:	████████████████████	
Gender:	████	Ethnicity:	████
Person Assisting:		Date of Birth:	██████████

Name:	██████████	Type:	Victim
Address:	██		
Contacts:	Phone(Home):	Phone(Mobile):	██████████
	Phone(Work):	Phone(Other):	██████████
	Email:		
Gender:	████	Ethnicity:	████
Person Assisting:		Date of Birth:	██████████

Name:	██████████	Type:	Victim
Address:	██		
Contacts:	Phone(Home):	Phone(Mobile):	██████████
	Phone(Work):	Phone(Other):	
	Email:	████████████████████	
Gender:	████	Ethnicity:	████
Person Assisting:		Date of Birth:	██████████

Name:	██████████	Type:	Victim
Address:	██		

Contacts: Phone(Home): Phone(Mobile):
Phone(Work): Phone(Other):
Email:

Gender: Ethnicity:
Person Assisting: Date of Birth:

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Christopher Walsh	Subject Officer		White	075	Premises entered and/or searched - (A) Substantiated (Command Discipline A)
SGT	Henry Daverin	Subject Officer		White	075	Premises entered and/or searched - (A) Substantiated (Command Discipline B)
CPT	Roberto Melendez	Subject Officer		Hispanic	075	Premises entered and/or searched - (A) Exonerated
CPT	Roberto Melendez	Subject Officer		Hispanic	075	Premises entered and/or searched - (A) Exonerated
CPT	Roberto Melendez	Subject Officer		Hispanic	075	Premises entered and/or searched - (A) Exonerated
CPT	Roberto Melendez	Subject Officer		Hispanic	075	Premises entered and/or searched - (A) Exonerated
POM	Tony Cuoco	Subject Officer		Hispanic	075	Premises entered and/or searched - (A) Substantiated (Command Discipline A)

Initial Complaint Narrative

DIRAD-

On May 21, 2016, at approximately 3:00 pm, at [REDACTED] [REDACTED] in Brooklyn, [REDACTED] and several individuals, were issued summonses and arrested after a raid in his apartment. [REDACTED] apartment was searched and destroyed by several officers and detectives. The officers claimed that they found a weapon and a credit card machine in the home. [REDACTED] further stated that his brother was also arrested in front of [REDACTED], in Brooklyn. Officers took the car keys from his brother and had the car transported to the precinct. [REDACTED] has made several calls to the precinct and spoke to PO1 regarding his vehicle. PO1 told him that he could have the vehicle once he signs a document allowing them to search the vehicle. [REDACTED] did not sign any document and was waiting for a call back regarding the vehicle.

PO1: "Roth", arresting officer, white, in plainclothes
Officers: white, males, in uniform and plainclothes

The following was provided via a follow up call:

On May 21, 2016, at approximately 3:00 pm, [REDACTED] was working in his basement apartment at [REDACTED], in Brooklyn, when PO1, PO2 and PO3 knocked on his door. He answered the door and PO1, PO2, PO3 and some other officers on the street. The officers at his door asked him if he heard any gunshots in the area. He told the officers that he did not hear anything. The officers left and ten minutes later, plainclothes officers PO4, PO5 and PO6 knocked on his door. [REDACTED] answered the door and the officers asked him the same questions about the gunshots in the area. He told the officers that those things were common in his neighborhood. The officers then left and sometime later six or more officers in gear knocked on his door. The officers were wearing head gear and they asked him if anyone else was inside. [REDACTED] told them that there were, and they told him they all had to come out. He called out for [REDACTED], [REDACTED], [REDACTED] and an individual named [REDACTED]. They all exited the home and the officers in gear entered and searched the home. While he was standing outside the house, PO7 approached him and asked him if he was still on parole. He told PO7 that he was and PO7 asked him if he knew he had to help the police out. [REDACTED] told him that he knew that and PO7 told him he was not going to arrest him, but he was going to bring him to the precinct for questioning. He was then transported by PO8 and PO9 in a van and while en route to the precinct, the officers received a call to go back to the house to pick up another passenger. They then drove back to [REDACTED] house and picked up his nephew, [REDACTED]. PO8 and PO9 the drove them to the 75th precinct. When they arrived, PO8 received a text on his phone and showed it to PO9. He heard the officers saying that they were now on the same page and when [REDACTED] exited the vehicle, PO8 told him to turn around. He asked the officer why he was going to handcuff him and he was told it was procedure. He was then brought into the stationhouse and placed in a holding cell. He was held at the precinct for several hours and when he asked for an update, he was told to speak to his arresting officer.

On May 22, 2016, [REDACTED] and his [REDACTED] were photographed, processed and brought to central booking. They were accused and charged with possession of a weapon in the third degree and with possession of a credit card machine. When [REDACTED] returned to the home, he found that the officers destroyed the walls and scattered food and items all over. They tore down some of the sheet rocks from the walls.

[REDACTED] stated that he was unable to provide a full description of all the officers. He was able to provide the following:

PO1, PO2, PO3: male, white, in uniform

PO4, PO5, PO6: male, white, in plainclothes

PO7: "Captain", male, in uniform, stripes on uniform shirt

PO8 and PO9: male, white

Officers in gear: male, white

Witness

Name of Witness: [REDACTED]

Address: [REDACTED]

Contacts:

Phone(Home): [REDACTED]

Phone(Mobile): [REDACTED]

	Phone(Work):	Phone(Other):
	Email:	
Gender :	████	Ethnicity: █████
Date of Birth :	██████	
Name of Witness:	██████████	
Address:	██████████████████████████████	
Contacts:	Phone(Home):	Phone(Mobile): ██████████
	Phone(Work):	Phone(Other):
	Email:	
Gender :	████	Ethnicity: █████
Date of Birth :	██████	
Name of Witness:	██████████	
Address:	██████████████████████████████	
Contacts:	Phone(Home):	Phone(Mobile): ██████████
	Phone(Work):	Phone(Other):
	Email:	
Gender :	████	Ethnicity: █████
Date of Birth :	██████	
Name of Witness:	██████████	
Address:	██████████████████████████████	
Contacts:	Phone(Home):	Phone(Mobile):
	Phone(Work):	Phone(Other):
	Email:	
Gender :	████	Ethnicity: █████
Date of Birth :	██████	